

Court No. - 21

Case :- WRIT - C No. - 30987 of 2014

Petitioner :- M/S Omar Cold Storage Pvt. Ltd.

Respondent :- Madhyanchal Vidut Vitran Nigam Ltd. And 2 Ors

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Shivam Yadav,A.N. Singh

Hon'ble Krishna Murari,J.

Hon'ble Mrs. Vijay Lakshmi,J.

Connect and list with Writ Petition (C) No. 51884 of 2009.

Heard learned counsel for the petitioner as well as Shri Umesh Chandra Yadav holding brief of Shri Baleshwar Chaturvedi, learned counsel for the respondent nos. 1 and 2.

By means of this writ petition, the petitioner has prayed for quashing the demand notice for the month of April, 2014 issued by the respondent No. 2. Learned counsel for the petitioner submits that additional security has been asked under Para 4.20 of U. P. Electricity Supply Code, 2005.

Learned counsel for the petitioners submits that similar writ petition has been entertained and interim orders have been passed by this Court. Reference has been made to the order dated 7.10.2009 in Writ Petition No. 51844 of 2009(M/s Supreme Ceramics Limited Versus Paschimanchal Vidyut Vitran Nigam Ltd. and others).

Learned counsel for the respondents submits that in several matters identical questions are involved.

Let a counter affidavit may be filed within six weeks. Rejoinder affidavit, if any, may be filed within three weeks thereafter.

List after exchange of affidavits.

In view of the interim order as already granted in writ petition No. 51844 of 2009 as referred above it is provided, without prejudice to the right and contention of the parties, that until further orders of this Court the respondents are restrained from demanding additional security from the petitioners.

Order Date :- 29.5.2014

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Chief Justice's Court

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Hon'ble Dilip B. Bhosale,Chief Justice

Hon'ble Yashwant Varma,J.

Dismissed.

For orders, see order of date passed in Writ-C No. 30898 of 2016.

Order Date :- 21.3.2017

AHA

(Dilip B Bhosale, CJ)

(Yashwant Varma, J)